CHIPO KAMBADZI
versus
BEWCASTLE INVESTMENTS PVT LTD
and
ZVIMBA RURAL DISTRICT COUNCIL

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 2 June 2026

Urgent chamber application

Miss A Nyathi and A Mugiya, for the applicant
L Uriri and T Nyahuma, for the first respondent
No appearance for the second respondent

WAMAMBO J: The matter was an urgent chamber application for spoliation.

The Applicant submitted that on 10 October 2008 she entered into a Lease with Option to Purchase Agreement with the second Respondent for Plot 261 Rainham, measuring 9.9048 hectares. The lease was for both agricultural and residential purposes, and she undertook farming activities, established an orchard, dug a well, and erected a temporary structure to safeguard her crops. She maintains that the lease remains valid and has not been cancelled or terminated, and that she has consistently occupied and controlled the property.

She further submitted that in May 2025 a representative of the first Respondent alleged that 6 hectares of her land had been purchased and demanded access. She refuted these claims and her legal practitioners challenged the first Respondent to produce proof. She said upon requesting her file from the second Respondent, she discovered fraudulent documents purporting to reduce her land from 9.9 hectares to 4.7 hectares and later to 1 hectare. She denies authorising such documents and has instituted proceedings under case number HCH673/26 to declare her rights. The Applicant submitted that the need to act arose on 28 February 2026 when the first

Respondent invaded her property, dug a trench, and sought to erect a brick wall on 6 hectares of her land.

The Respondent raised three points in limine. First, that the matter is not urgent because the Certificate of Urgency is defective, failing to properly address the time and consequence dimensions, and inconsistently referring to "sometime in May 2025" and "28 February" without clarity. Secondly, that the relief sought is incompetent because the Applicant seeks a final order rather than interim relief in urgent proceedings. Thirdly, that the Applicant goes beyond spoliatory relief by raising issues of ownership and title, thereby compelling the court to consider the Respondent's defence on the merits.

On the merits, the first Respondent submitted that it did not invade Applicant's Stand 261 but has been developing its own properties, stands 630 and 631, which lawfully belong to it and adjoin Applicant's land. The first respondent averred that the applicant initially was allocated 9.908 hectares in 2008 but, having failed to meet her obligations, requested the second Respondent to reduce her stand to 1.0132 hectares. She received USD 60,000.00 from the first Respondent in consideration for Stands 630 and 631. The first respondent submitted documents including a letter she purportedly wrote dated 16 April 2012 requesting reduction, the second Respondent's response of 20 May 2013, and a signed acknowledgment of receipt of USD 60,000.00. The first respondent said in August 2016, the second Respondent entered into a Lease with Option to Purchase with the first Respondent for Stand 631. The first Respondent submitted that the Applicant cannot rely on her original allocation of 9.908 hectares, as her rights were lawfully diminished by her own request and subsequent agreements, and that the dispute is therefore one of ownership and title, not spoliation.

The three points *in limine* will be dealt with first.

Firstly, the first Respondent submitted that the matter was not urgent because the Certificate of Urgency referred vaguely to "sometime in May 2025," which was ten months prior to the filing of the application. In their view, if the need to act arose in May 2025, the Applicant ought to have approached the court then, and the delay rendered the matter non-urgent.

The court however, finds that the Applicant's founding affidavit makes it clear that the need to act arose on 28 February 2026, when the alleged invasion occurred. The certificate of

urgency also refers to the same date, and when the papers are read together, the omission of the year is of no consequence. The reference to May 2025 was merely background; at that time, the Applicant had no cause of action because no invasion had yet taken place. The application was filed on 6 March 2026, within five days of the invasion, and therefore the matter is urgent.

Secondly, the first Respondent submitted that the relief sought was incompetent because an Applicant seeking urgent relief cannot ask for a final order, yet the draft order in casu sought final relief.

It is trite that spoliation relief is final in nature. In *J.C. Conolly and Sons (Private) Limited* v *R.C. Ndhlukula & Anor SC 22/18,* at page 18, the court made the following remark:

> "The law is settled that an order of spoliation is final in nature and that it determines the immediate right of possession of a particular res."

Accordingly, the relief sought is competent.

Thirdly, the first respondent submitted that the Applicant went beyond merely claiming spoliatory relief by averting to the merits of possession and raising issues of ownership, thereby compelling the court to consider substantive rights.

The authorities cited by the first Respondent, including *Minister of Agriculture & Agricultural Development* v *Segopolo & Others 1992 (3) SA 967*., are distinguishable because in those cases applicants sought relief beyond restoration i.e vindication, the Applicant did not seek vindication or ownership but merely narrated the background of events leading to the alleged spoliation. In *casu,* the Applicant seeks only spoliatory relief.

The first Respondent submitted that the Applicant was not in occupation of stands 630 and 631 at the time of the dispute, albeit acknowledging that the Applicant had once been in possession of the said land. However, based on the weight of the evidence adduced by the Applicant, which corroborates her narration, the Court is satisfied that the first Respondent's assertion was not truthful.

The Applicant averred that in May 2025 she was approached by one Melody Frank, a representative of the first Respondent, who alleged that the first Respondent had purchased the land in question from her and demanded access for its employees. The first Respondent did not deny approaching the Applicant but contended that it had established she was not in occupation

of stands 630 and 631, but rather of a different piece of land. In rebuttal, the Applicant produced a letter authored by her legal practitioners addressed to Melody Frank, wherein she categorically denied the alleged transaction, challenged the first Respondent to produce proof thereof, and warned that any attempt to occupy stands 630 and 631 would invite legal action.

The Applicant further demonstrated occupation and use of the property by showing that she cultivated various crops, maintained an orchard, dug a well, erected a temporary structure, and employed one Fanuel Mupinga to reside on the land in a makeshift tent.

On 28 February 2026, the Applicant was alerted by her employee, Fanuel Mupinga, that several individuals had invaded the property, commenced digging trenches, and destroyed the makeshift tent. Acting promptly, the Applicant confronted one of the intruders, who identified himself only as an employee of the first Respondent and insisted that they were operating on the first Respondent's land and required no authority to do so. The testimony of Fanuel Mupinga was submitted in the form of a supporting affidavit.

In *Ngonidzaishe Gumbo* v *Zimbabwe Anti-Corruption Commission SC 36/18* the Supreme Court stated:

> "In a claim for a *mandament van spolie*, an applicant needs to establish the following:
>
> i) that he or she was in peaceful and undisturbed possession; and
>
> ii) that he or she was forcibly or wrongly deprived of such possession."

The Supreme court also referred to the case of *Magadzire* v *Magadzire SC 197/98* wherein it said it was stated that spoliation had nothing to do with rights of ownership, but was concerned solely with possession and the unlawful deprivation thereof.

The court is convinced that the applicant upon invasion by the first respondent was in peaceful and undisturbed possession and was wrongfully deprived of such possession. The application being meritorious, the court makes the following order:

1. The first Respondent be and is hereby ordered not to interfere with the Applicant's possession, occupation and control of No. 261 Rainham, Zvimba.

2. The Respondents are estopped from threatening to invade or evicting the Applicant from No. 261 Rainham, Zvimba without a valid court order.

3. The first Respondent be and is hereby ordered to pay costs.

WAMAMBO J ……

Mugiya Law Chambers, the applicant's legal practitioners
Nyahuma's Law - Golden Stairs Chambers, the first respondents legal practioners
Dube-Banda, Nzarayapenga & Partners, the second respondent's legal practitoners